

THE UNIVERSAL HOUSE OF JUSTICE

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Thematisches Studium

Ḥuqúqu'lláh—The Right of God

A Compilation of Extracts from the Writings of Bahá'u'lláh and 'Abdu'l-Bahá and from Letters Written by and on Behalf of Shoghi Effendi and the Universal House of Justice

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- 1 Foundations of the Law of Ḥuqúqu'lláh

Extracts from the Writings of Bahá'u'lláh

Magnified art Thou, O Lord of the entire creation, the One unto Whom all things must turn! With my inner and outer tongues I bear witness that Thou hast manifested and revealed Thyself, sent down Thy signs, and proclaimed Thy testimonies. I testify to Thy self-sufficiency from aught else except Thee, and Thy sanctity above all earthly things. I entreat Thee by the transcendent glory of Thy Cause and the supreme potency of Thy Word to grant confirmation unto him who desireth to offer what Thou hast prescribed unto him in Thy Book and to observe that which will shed forth the fragrance of Thine acceptance. Verily Thou art the Almighty, the All-Gracious, the All-Forgiving, the All-Generous.

[1]

Thine intention to pay a visit to the blessed House is acceptable and well-pleasing in the sight of this Wronged One....

Say: O people, the first duty is to recognize the one true God—magnified be His glory—the second is to show forth constancy in His Cause and, after these, one's duty is to purify one's riches and earthly possessions according to that which is prescribed by God. Therefore it becometh thee to meet thine obligation to the Right of God first, then to direct thy steps toward His blessed House. This hath been brought to thine attention as a sign of favour.

[2]

Should anyone acquire one hundred mithqáls of gold, nineteen mithqáls thereof are God's and to be rendered unto Him, the Fashioner of earth and heaven. Take heed, O people,

lest ye deprive yourselves of so great a bounty. This We have commanded you, though We are well able to dispense with you and with all who are in the heavens and on earth; in it there are benefits and wisdoms beyond the ken of anyone but God, the Omniscient, the All-Informed. Say: By this means He hath desired to purify what ye possess and to enable you to draw nigh unto such stations as none can comprehend save those whom God hath willed. He, in truth, is the Beneficent, the Gracious, the . O people! Deal not faithlessly with the Right of God, nor, without His leave, make free with its disposal. Thus hath His commandment been established in the holy Tablets, and in this exalted Book. He who dealeth faithlessly with God shall in justice meet with faithlessness himself; he, however, who acteth in accordance with God's bidding shall receive a blessing from the heaven of the bounty of his Lord, the Gracious, the Bestower, the Generous, the Ancient of Days. He, verily, hath willed for you that which is yet beyond your knowledge, but which shall be known to you when, after this fleeting life, your souls soar heavenwards and the trappings of your earthly joys are folded up. Thus admonisheth you He in Whose possession is the Guarded Tablet.

(The Kitáb-i-Aqdas, par. 97) [3]

Nothing that existeth in the world of being hath ever been or will ever be worthy of mention. However, if a person be graciously favoured to offer a pennyworth—nay, even less—in the path of God, this would in His sight be preferable and superior to all the treasures of the earth. It is for this reason that the one true God—exalted be His glory—hath in all His heavenly Scriptures praised those who observe His precepts and bestow their wealth for His sake. Beseech ye God that He may enable everyone to discharge the obligation of Ḥuqúq, inasmuch as the progress and promotion of the Cause of God depend on material means. If His faithful servants could realize how meritorious are benevolent deeds in these days, they would all arise to do that which is meet and seemly. In His hand is the source of authority and He ordaineth as He willeth. He is the Supreme Ruler, the Bountiful, the Equitable, the Revealer, the All-Wise.

[4]

For a number of years Ḥuqúq was not accepted.... However, in recent years We have, in view of the exigencies of the times, accepted the payment of the Ḥuqúq, but have forbidden solicitation thereof. Everyone must have the utmost regard for the dignity of the Word of God and for the exaltation of His Cause. Were a person to offer all the treasures of the earth at the cost of debasing the honour of the Cause of God, were it even less than a grain of mustard, such an offering would not be permissible. All the world hath belonged and will always belong to God. If one spontaneously offereth Ḥuqúq with the utmost joy and radiance it will be acceptable, and not otherwise. The benefit of such deeds reverteth unto the individuals themselves. This measure hath been ordained in view of the necessity for material means, for “averse is God from putting aught into effect except through its means”. Thus instructions were given to receive the Ḥuqúq.

[5]

The one true God—exalted be His glory—hath ever been and will continue to be exalted above every expression of praise and is sanctified from the world of existence and all the riches therein. Whatsoever proceedeth from Him produceth a fruit the benefits of which revert to the individuals themselves. Erelong will they perceive the truth of that which the Tongue of Grandeur hath uttered aforetime and will utter hereafter. And such benefits will indeed accrue if the Ḥuqúq is offered with the utmost joy and radiance and in a spirit of perfect humility and lowliness.

[6]

O Zayn! Such souls as comply with the injunction of God prescribed in the Book are regarded as most excellent in the estimation of God. There can be no doubt that whatsoever is revealed from the heaven of divine commandment is by virtue of His wisdom and is in the best interests of the people themselves. Moreover, although these insignificant amounts are not worthy of mention, they are well pleasing, since the donors offer them for the sake of God. If the offering be but a single grain it is regarded as the crowning glory of all the harvests of the world.

[7]

Whoso is privileged to pay the Right of God will be numbered with such as have observed the ordinances of the one true God—magnified be His glory—and have fulfilled that which is set down by the All-Glorious Pen.

Time and again have We written and commanded that no one should solicit such payment. The offering of every person that voluntarily tendereth the Ḥuqúqu'lláh with the utmost joy and pleasure may be accepted, otherwise acceptance was not and is not permissible. Those that are oblivious of their duty should be briefly reminded. Deeds must be performed with willingness, and in all circumstances high regard must be given to the dignity of the Cause of God. Formerly We have mentioned that were a person to possess the whole world and would tender his possessions at the cost of degrading the honour of the Cause, even to the extent of a grain of mustard, it would be essential and imperative to refuse to accept such wealth. Such is the Cause of God, eternal in the past, eternal in the future. Well is it with them that act accordingly.

The ordinance prescribing the payment of Ḥuqúq is but a favour vouchsafed by the one true God—exalted be His glory—and the benefits arising therefrom shall fall to the donors themselves. It behoveth all to render thanks unto God, the Most Exalted, Who hath graciously enabled them to meet the obligation of Ḥuqúq. We held back the Pen for a long period during which no instruction was issued in this respect, until such time as the requirements of His inscrutable wisdom demanded the acceptance of Ḥuqúq. "Averse is God from putting aught into effect except through its means." It is essential for certain people to receive aid, and others need attention and care, but all this must take place by the leave of God, the Help in Peril, the Self-Subsisting.

[8]

And now concerning what thou hast mentioned regarding the Ḥuqúq. This hath been ordained especially for the one true God—exalted be His glory—and should be forwarded to the court of His Holy Presence. In His grasp is the source of authority. He doeth what He pleaseth and ordaineth what He chooseth....

This ordinance is binding upon everyone, and by observing it one will be raised to honour inasmuch as it will serve to purify one's possessions and will impart blessing, and added prosperity. However, the people are as yet ignorant of its significance. They continually endeavour to amass riches by lawful or unlawful means in order to transmit them to their heirs, and this to what advantage, no one can tell. Say: In this day the true Heir is the Word of God, since the underlying purpose of inheritance is the preservation of the name and traces of men. It is indubitably clear that the passing of centuries and ages will obliterate these signs, while every word that hath streamed from the Pen of Glory in honour of a certain individual will last as long as the dominions of earth and heaven will endure.

[9]

This is the Book of Generosity which hath been revealed by the King of Eternity. Whoso adorneth himself with this virtue hath distinguished himself and will be blessed by the All-Merciful from His exalted . However, despite his high rank and prominent position, were he to pass beyond the limits, he would be regarded as among the prodigal by the All-Knowing, the All-Wise. Cling ye unto moderation. This is the commandment that He Who is the All-Possessing, the Most High hath enjoined upon you in His Generous Book. O ye that are the exponents of generosity and the manifestations thereof! Be generous unto them whom ye find in manifest poverty. O ye that are possessed of riches! Take heed lest outward appearance deter you from benevolent deeds in the path of God, the Lord of all mankind.

Say: I swear by God! No one is despised in the sight of the Almighty for being poor. Rather is he exalted, if he is found to be of them who are patient. Blessed are the poor that are steadfast in patience, and woe betide the rich that hold back Ḥuqúqu'lláh and fail to observe that which is enjoined upon them in His Preserved Tablet.

Say: Pride not yourselves on earthly riches ye possess. Reflect upon your end and upon the recompense for your works that hath been ordained in the Book of God, the Exalted, the Mighty. Blessed is the rich man whom earthly possessions have been powerless to hinder from turning unto God, the Lord of all names. Verily he is accounted among the most distinguished of men before God, the Gracious, the All-Knowing.

Say: The appointed Day is come. This is the Springtime of benevolent deeds, were ye of them that comprehend. Strive ye with all your might, O people, that ye may bring forth that which will truly profit you in the worlds of your Lord, the All-Glorious, the All-Praised.

Say: Hold ye fast unto praiseworthy characteristics and goodly deeds and be not of them that tarry. It behoveth everyone to cleave tenaciously unto that which is conducive to the exaltation of the Cause of God, your Lord, the Mighty, the Powerful.

Say: Behold ye not the world, its changes and chances, and its varying colours? Wherefore are ye satisfied with it and with all the things therein? Open your eyes and be of them that are endued with insight. The day is fast approaching when all these things will have vanished as fast as the lightning, nay even faster. Unto this beareth witness the Lord of the Kingdom in this wondrous Tablet.

Wert thou to be enraptured by the uplifting ecstasy of the verses of God, thou wouldst yield thanks unto thy Lord and say: "Praise be unto Thee, O Desire of the hearts of them that hasten to meet Thee!" Rejoice then with exceeding gladness, inasmuch as the Pen of Glory hath turned unto thee and hath revealed in thy honour that which the tongues of creation and the tongues of transcendence are powerless to describe.

[10]

It is incumbent upon everyone to discharge the obligation of Ḥuqúq. The advantages gained from this deed revert to the persons themselves. However, the acceptance of the offerings dependeth on the spirit of joy, fellowship and contentment that the righteous souls who fulfil this injunction will manifest. If such is the attitude, acceptance is permissible and not otherwise. Verily thy Lord is the All-Sufficing, the All-Praised.

[11]

It is clear and evident that the payment of the Right of God is conducive to prosperity, to blessing, and to honour and divine protection. Well is it with them that comprehend and recognize this truth and woe betide them that believe not. And this is on condition that the individual should observe the injunctions prescribed in the Book with the utmost radiance,

gladness and willing acquiescence. It behoveth you to counsel the friends to do that which is right and praiseworthy. Whoso hearkeneth to this call, it is to his own behoof, and whoso faileth bringeth loss upon himself. Verily our Lord of Mercy is the All-Sufficing, the All-Praised.

[12]

Ḥuqúqu'lláh is indeed a great law. It is incumbent upon all to make this offering, because it is the source of grace, abundance, and of all good. It is a bounty which shall remain with every soul in every world of the worlds of God, the All-Possessing, the All-Bountiful.

[13]

In this day it is incumbent upon everyone to serve the Cause of God, while He Who is the Eternal Truth—exalted be His glory—hath made the fulfilment of every undertaking on earth dependent on material means. Hence it is enjoined upon every individual to offer that which is the Right of God.

[14]

Great God! In this glorious Dispensation the treasures laid up by kings and queens are not worthy of mention, nor will they be acceptable in the Presence of God. However, a grain of mustard offered by His loved ones will be extolled in the exalted court of His holiness and invested with the ornament of His acceptance. Immeasurably exalted is His bounty, immeasurably glorified is His majesty.

[15]

The benefits accruing from benevolent works shall fall to the individuals concerned. In such matters only a word would suffice. Should anyone offer Ḥuqúq with utmost joy and radiance, manifesting a spirit of resignation and content, his offering shall be acceptable before God, otherwise He can dispense with all the peoples of the earth.... Well is it with them that have fulfilled that which is prescribed in the Book of God. It is incumbent upon everyone to observe that which God hath purposed, for whatsoever hath been set forth in the Book by the Pen of Glory is an effective means for the purging, the purification and sanctification of the souls of men and a source of prosperity and blessing. Happy are they that have observed His commandments.

No goodly deed was or will ever be lost, for benevolent acts are treasures preserved with God for the benefit of those who act. Blessed the servant and the maidservant who have fulfilled their obligation in the path of God our Lord, the Lord of all worlds.... The Right of God must be paid whenever possible and should be offered in a spirit of joy and radiance. Those that are unable to pay will be invested with the ornament of His forgiveness.

[16]

There can be no doubt that whatsoever hath been revealed from the All-Glorious Pen, be it ordinances or prohibitions, conferreth benefits upon the believers themselves. For example, among the commandments is that of the Ḥuqúqu'lláh. If the people attain the privilege of paying the Ḥuqúq, the one true God—exalted be His glory—will of a certainty confer blessing upon them. Moreover, such payment will enable them and their offspring to benefit from their possessions. As thou dost observe, large portions of people's wealth are lost to them as God causeth strangers, or heirs in comparison with whom strangers would have been preferable, to lay hands on their possessions.

God's consummate wisdom is far beyond any description or fitting mention. Verily, people see with their own eyes and yet deny; they are aware, yet they pretend not to know. Had they observed the ordinance of God they would have attained the good of this world and the next.

[17]

The question of the Ḥuqúq dependeth on the willingness of the individuals themselves. From every true believer who is willing to tender the Right of God spontaneously and with the utmost joy and radiance, the offering is graciously acceptable, but not otherwise. Verily, thy Lord is independent of all mankind. Consider thou that which the All-Merciful hath revealed in the Qur'án: "O men! Ye are but paupers in need of God, but God is the Self-Sufficient, the All-Praised."

At all times one must have the utmost regard for the dignity and honour of the Cause of God.

[18]

Thou hast written that they have pledged themselves to observe maximum austerity in their lives with a view to forwarding the remainder of their income to His exalted presence. This matter was mentioned at His holy court. He said: Let them act with moderation and not impose hardship upon themselves. We would like them both to enjoy a life that is well-pleasing.

[19]

There is a prescribed ruling for the Ḥuqúqu'lláh. After the House of Justice hath come into being, the law thereof will be made manifest, in conformity with the Will of God.

[20]

Glorified art Thou, O my compassionate Lord! I entreat Thee by the tumult of the ocean of Thy holy utterance, and by the manifold tokens of Thy supreme sovereignty, and the compelling evidences of Thy Divinity, and the hidden mysteries that lie concealed within Thy knowledge, to give me Thy grace to serve Thee and Thy chosen ones, and enable me to dutifully offer Thy Ḥuqúq which Thou hast ordained in Thy Book.

I am the one, O my Lord, who hath set his affections on Thy realm of glory, and hath clung tenaciously to the hem of Thy generosity. O Thou Who art the Lord of all being and the Ruler of the kingdom of names, I beseech Thee not to deny me the things Thou dost possess, nor to withhold from me that which Thou hast ordained for Thy chosen ones.

I implore Thee, O Lord of all names and Creator of the heavens, to assist me to be steadfast in Thy Cause, through Thy strengthening grace, in such wise that the vanities of the world may not suffer me to be shut out as by a veil, nor to be hindered by the violent commotions of the wicked-doers who have risen up to lead Thy people astray in Thy days. Destine for me then, O my heart's Desire, the good of this world and the world to come. Verily Thou art powerful to do as Thou willest. No God is there but Thee, the Ever-Forgiving, the Most Generous.

[21]

Extracts from the Writings of 'Abdu'l-Bahá

O friends of 'Abdu'l-Bahá! The Lord, as a sign of His infinite bounties, hath graciously favored His servants by providing for a fixed money offering (Ḥuqúq), to be dutifully presented unto Him, though He, the True One and His servants have been at all times

independent of all created things, and God verily is the All-Possessing, exalted above the need of any gift from His creatures. This fixed money offering, however, causeth the people to become firm and steadfast and draweth Divine increase upon them.

(Will and Testament of 'Abdu'l-Bahá (Wilmette: Bahá'í Publishing Trust, 1944, 1997 printing), p. 15) [22]

As preordained by the Fountain-head of Creation, the temple of the world hath been fashioned after the image and likeness of the human body. In fact each mirroreth forth the image of the other, wert thou but to observe with discerning eyes. By this is meant that even as the human body in this world, which is outwardly composed of different limbs and organs, is in reality a closely integrated, coherent entity, similarly the structure of the physical world is like unto a single being whose limbs and members are inseparably linked together.

Were one to observe with an eye that discovereth the realities of all things, it would become clear that the greatest relationship that bindeth the world of being together lieth in the range of created things themselves, and that co-operation, mutual aid and reciprocity are essential characteristics in the unified body of the world of being, inasmuch as all created things are closely related together and each is influenced by the other or deriveth benefit therefrom, either directly or indirectly.

Consider for instance how one group of created things constituteth the vegetable kingdom, and another the animal kingdom. Each of these two maketh use of certain elements in the air on which its own life dependeth, while each increaseth the quantity of such elements as are essential for the life of the other. In other words, the growth and development of the vegetable world is impossible without the existence of the animal kingdom, and the maintenance of animal life is inconceivable without the co-operation of the vegetable kingdom. Of like kind are the relationships that exist among all created things. Hence it was stated that co-operation and reciprocity are essential properties which are inherent in the unified system of the world of existence, and without which the entire creation would be reduced to nothingness.

In surveying the vast range of creation thou shalt perceive that the higher a kingdom of created things is on the arc of ascent, the more conspicuous are the signs and evidences of the truth that co-operation and reciprocity at the level of a higher order are greater than those that exist at the level of a lower order. For example, the evident signs of this fundamental reality are more discernible in the vegetable kingdom than in the mineral, and still more manifest in the animal world than in the vegetable.

And thus when contemplating the human world thou beholdest this wondrous phenomenon shining resplendent from all sides with the utmost perfection, inasmuch as in this station acts of co-operation, mutual assistance and reciprocity are not confined to the body and to things that pertain to the material world, but for all conditions, whether physical or spiritual, such as those related to minds, thoughts, opinions, manners, customs, attitudes, understandings, feelings or other human susceptibilities. In all these thou shouldst find these binding relationships securely established. The more this interrelationship is strengthened and expanded, the more will human society advance in progress and prosperity. Indeed without these vital ties it would be wholly impossible for the world of humanity to attain true felicity and success.

Now consider, if among the people who are merely the manifestations of the world of being this significant matter is of such importance, how much greater must be the spirit of co-operation and mutual assistance among those who are the essences of the world of

creation, who have sought the sheltering shadow of the heavenly Tree, and are favoured by the manifestations of divine grace; and how the evidences of this spirit should, through their earnest endeavour, their fellowship and concord, become manifest in every sphere of their inner and outer lives, in the realm of the spirit and divine mysteries and in all things related to this world and the next. Thus there can be no doubt that they must be willing even to offer up their lives for each other.

This is the basic principle on which the institution of Ḥuqúqu'lláh is established, inasmuch as its proceeds are dedicated to the furtherance of these ends. Otherwise the one true God hath ever been and will always be independent of all else beside Him. Even as He hath enabled all created things to partake of His boundless grace and loving-kindness, likewise is He able to bestow riches upon His loved ones out of the treasures of His power. However, the wisdom of this command is that the act of giving is well-pleasing in the sight of God. Consider how well-pleasing must this mighty act be in His estimation that He hath ascribed it unto His Own Self. Rejoice ye then, O people of generosity!

We earnestly hope that in this Most Great Cycle the wondrous attributes of the All-Merciful may, through the infinite bounty and blessings of the King of Glory, find expression in the lives of the servants of God in such wise that the sweet savours thereof will shed fragrance upon all regions.

This matter needeth further details, but We have treated it in brief.

[23]

O my heavenly friends! It is certain and evident that the Incomparable One is always praised for His absolute wealth, distinguished for His all-embracing mercy, characterized by His eternal grace, and known for His gifts to the world of existence. Nonetheless, in accordance with His inscrutable wisdom and in order to apply a unique test to distinguish the friend from the stranger, He hath enjoined the Ḥuqúq upon His servants and made it obligatory.

Those who have observed this weighty ordinance have received heavenly blessings and in both worlds their faces have shone radiantly and their nostrils have been perfumed by the sweet savours of God's tender mercy. One of the tokens of His consummate wisdom is that the payment of the Ḥuqúq will enable the donors to become firm and steadfast and will exert a great influence on their hearts and souls. Furthermore, the Ḥuqúq will be used for charitable purposes.

[24]

Render thou thanks unto God, for He hath graciously enabled thee to observe the injunction set forth in His Most Holy Book, inasmuch as thou hast arisen to fulfil the obligation of Ḥuqúq, and God hath accepted thy goodly deed.

Know thou, moreover, that those who faithfully serve the All-Merciful will be enriched by Him out of His heavenly treasury, and that the Ḥuqúq offering is but a test applied by Him unto His servants and maidservants. Thus every true and sincere believer will offer Ḥuqúq to be expended for the relief of the poor, the disabled, the needy, and the orphans, and for other vital needs of the Cause of God, even as Christ did establish a Fund for benevolent purposes.

[25]

Extract from a Letter Written on Behalf of Shoghi Effendi

Great is the recompense that God has ordained for the true and devoted souls, the pure and detached beings who have spontaneously bequeathed a portion of their earthly possessions to the Cause of God, either during their own lifetimes or through their wills, and have had the privilege and honour of discharging their obligations to Ḥuqúqu'lláh.

Give assurance on my behalf to the donors and to the survivors of those who have ascended unto God, affirming that these efforts and donations are bound to attract divine confirmations, heavenly blessings and incalculable favours, and to promote the manifold interests of the International Bahá'í Community. Well is it with them, inasmuch as God has enabled them to fulfil that which shall elevate their stations in this world and in the world to come.

(23 June 1945, to an individual believer, translated from the Persian) [26]

Extracts from Letters Written by and on Behalf of the Universal House of Justice

Such an exceptional confluence of imminent achievements—the publication of the Kitáb-i-Aqdas, the progress of the building projects on Mount Carmel, the conclusion of the Six Year Plan, the inception of the Holy Year—animates the expectations of the Bahá'í world, sets the stage for mightier endeavours than have already been attempted, and points us all to the opening of a new phase of history. It seems fitting, then, that the sacred law which enables each one to express his or her personal sense of devotion to God in a profoundly private act of conscience that promotes the common good, which directly connects the individual believer with the Central Institution of the Faith, and which, above all, ensures to the obedient and the sincere the ineffable grace and abundant blessings of Providence, should, at this favourable juncture, be embraced by all who profess their belief in the Supreme Manifestation of God. With humility before our sovereign Lord, we now announce that as of Riḍván 1992, the beginning of the Holy Year, the Law of Ḥuqúqu'lláh, the Right of God, will become universally applicable. All are lovingly called to observe it.

(Riḍván 1991, written by the Universal House of Justice to the Bahá'ís of the world) [27]

And now, amid the eager anticipations occasioned by the two major commemorative events and by the imminent publication of the Mother Book of the Bahá'í Revelation, the Law of Ḥuqúqu'lláh takes effect as part of the constant practice of the members of our entire world community. May the promised divine bounties associated with the activation of this holy law be showered upon the beloved of the Lord in every land.

(Riḍván 1992, written by the Universal House of Justice to the Bahá'ís of the world) [28]

It is the ardent hope of the Universal House of Justice that the spirit of the Holy Year and the effect of obedience to the Law of Ḥuqúqu'lláh will produce a quickening of the believers' awareness of the sacred character of the funds of the Faith and of the essential part they play in carrying out the purpose of Bahá'u'lláh's Revelation.

(19 June 1992, written on behalf of the Universal House of Justice to a National Spiritual Assembly) [29]

The institution of Ḥuqúqu'lláh will, during the course of this Dispensation, contribute to the spiritualization of humanity through the promotion of a new attitude to the acquisition and use of material resources. It will provide the material resources necessary for great collective enterprises designed to improve all aspects of life, and will be a powerful element in the growth of a world civilization.

(12 January 2003, written by the Universal House of Justice to the Deputies and Representatives of the institution of Ḥuqúqu'lláh) [30]

As to your fear over money, the acquisition of wealth is not in itself a fearsome objective, it is a practical necessity. The problem with wealth arises from inappropriate attitudes toward possessing and using it. In this regard, you may find it helpful to read the Hidden Words (Persian) numbers 80, 81 and 82. As in so many other aspects of personal life, Bahá'u'lláh's teachings provide a means for safeguarding us from the test of wealth by ordaining the law of Ḥuqúqu'lláh, providing the opportunity to contribute to the Bahá'í Funds, and encouraging philanthropic endeavors for the well-being of all.

(7 October 2005, written on behalf of the Universal House of Justice to an individual believer) [31]

2 Application of the Law of Ḥuqúqu'lláh

Extracts from the Writings of Bahá'u'lláh

They that have kept their promises, fulfilled their obligations, redeemed their pledges and vows, rendered the Trust of God and His Right unto Him—these are numbered among the inmates of the all-highest Paradise. Thus from His mighty Prison doth the Wronged One announce unto them this glad-tiding. Blessed are the servants and maidservants that have performed their deeds and blessed is the man that hath cleaved tenaciously unto praiseworthy acts and fulfilled that which is enjoined upon him in the Book of God, the Lord of the worlds.

[32]

The payment of the Right of God is conditional upon one's financial ability. If a person is unable to meet his obligation, God will verily excuse him. He is the All-Forgiving, the All-Generous.

[33]

Question: Concerning the basic sum on which Ḥuqúqu'lláh is payable.

Answer: The basic sum on which Ḥuqúqu'lláh is payable is nineteen mithqáls of gold. In other words, when money to the value of this sum hath been acquired, a payment of Ḥuqúq falleth due. Likewise Ḥuqúq is payable when the value, not the number, of other forms of property reacheth the prescribed amount. Ḥuqúqu'lláh is payable no more than once. A person, for instance, who acquireth a thousand mithqáls of gold, and payeth the Ḥuqúq, is not liable to make a further such payment on this sum, but only on what accrueth to it through commerce, business and the like. When this increase, namely the profit realized, reacheth the prescribed sum, one must carry out what God hath decreed. Only when the principal changeth hands is it once more subject to payment of Ḥuqúq, as it was the first time. The Primal Point hath directed that Ḥuqúqu'lláh must be paid on the value of whatsoever one possesseth; yet, in this Most Mighty Dispensation, We have exempted the household furnishings, that is such furnishings as are needed, and the residence itself.

(The Kitáb-i-Aqdas: The Most Holy Book, Questions and Answers, no. 8) [34]

Question: Which is to take precedence: the Ḥuqúqu'lláh, the debts of the deceased or the cost of the funeral and burial?

Answer: The funeral and burial take precedence, then settlement of debts, then payment of Ḥuqúqu'lláh. Should the property of the deceased prove insufficient to cover his debts, the remainder of his estate should be distributed among these debts in proportion to their size.

(The Kitáb-i-Aqdas: The Most Holy Book, Questions and Answers, no. 9) [35]

Question: The ordinance of Ḥuqúqu'lláh is revealed in the Kitáb-i-Aqdas. Is the residence, with the accompanying fixtures and necessary furnishings, included in the property on which Ḥuqúq is payable, or is it otherwise?

Answer: In the laws revealed in Persian We have ordained that in this Most Mighty Dispensation the residence and the household furnishings are exempt—that is, such furnishings as are necessary.

(The Kitáb-i-Aqdas: The Most Holy Book, Questions and Answers, no. 42) [36]

Question: If a person hath, for example, a hundred túmáns, payeth the Ḥuqúq on this sum, loseth half the sum in unsuccessful transactions and then, through trading, the amount in hand is raised again to the sum on which Ḥuqúq is due—must such a person pay Ḥuqúq or not?

Answer: In such an event the Ḥuqúq is not payable.

(The Kitáb-i-Aqdas: The Most Holy Book, Questions and Answers, no. 44) [37]

Question: If, after payment of Ḥuqúq, this same sum of one hundred túmáns is lost in its entirety, but subsequently regained through trade and business dealings, must Ḥuqúq be paid a second time or not?

Answer: In this event as well, payment of Ḥuqúq is not required.

(The Kitáb-i-Aqdas: The Most Holy Book, Questions and Answers, no. 45) [38]

Question: May a person, in drawing up his will, assign some portion of his property—beyond that which is devoted to payment of Ḥuqúqu'lláh and the settlement of debts—to works of charity, or is he entitled to do no more than allocate a certain sum to cover funeral and burial expenses, so that the rest of his estate will be distributed in the manner fixed by God among the designated categories of heirs?

Answer: A person hath full jurisdiction over his property. If he is able to discharge the Ḥuqúqu'lláh, and is free of debt, then all that is recorded in his will, and any declaration or avowal it containeth, shall be acceptable. God, verily, hath permitted him to deal with that which He hath bestowed upon him in whatever manner he may desire.

(The Kitáb-i-Aqdas: The Most Holy Book, Questions and Answers, no. 69) [39]

Question: If the deceased hath not settled his obligation to Ḥuqúqu'lláh, nor paid his other debts, are these to be discharged by proportionate deductions from the residence, personal clothing and the rest of the estate, or are the residence and personal clothing set aside for the male offspring, and consequently the debts must be settled from the rest of the estate? And if the rest of the estate is insufficient for this purpose, how should the debts be settled?

Answer: Outstanding debts and payments of Ḥuqúq should be settled from the remainder of the estate, but if this is insufficient for the purpose, the shortfall should be met from his residence and personal clothing.

(The Kitáb-i-Aqdas: The Most Holy Book, Questions and Answers, no. 80) [40]

Question: When one's wealth exceeds nineteen, is it necessary for it to increase by a further nineteen before Ḥuqúq is due again, or would it be due on any increase?

Answer: Any amount added to nineteen is exempt from Ḥuqúq until it reacheth a further nineteen.

(The Kitáb-i-Aqdas: The Most Holy Book, Questions and Answers, no. 90) [41]

Question: Regarding the appointments of a place of business, which are needed for carrying on one's work or profession: are they subject to the payment of Ḥuqúqu'lláh, or are they covered by the same ruling as the household furnishings?

Answer: They are covered by the same ruling as the household furnishings.

(The Kitáb-i-Aqdas: The Most Holy Book, Questions and Answers, no. 95) [42]

The minimum amount subject to Ḥuqúqu'lláh is reached when one's possessions are worth the number of Váhid; that is, whenever one owneth nineteen mithqáls of gold, or acquireth possessions attaining this value, after having deducted therefrom the yearly expenses, the Ḥuqúq becometh applicable and its payment is obligatory.

[43]

It hath been decreed by God that a property which is not lucrative, that is, yieldeth no profit, is not subject to the payment of Ḥuqúq. Verily He is the Ordainer, the .

[44]

Extracts from the Writings of 'Abdu'l-Bahá

Thou hast enquired about the Ḥuqúq. From one's annual income, all expenses during the year are deductible, and on what is left 19% is payable to the Ḥuqúq. Thus, a person hath earned £1,000 income out of his business. After deducting his annual expenses of, say, £600, he would have a surplus of £400 on which Ḥuqúq is payable at the rate of 19%. This would amount to £76 to be offered for charitable purposes to the Ḥuqúq.

The Ḥuqúq is not levied on one's entire possessions each year. A person's wealth may be worth £100,000. How can he be expected to pay Ḥuqúq on this property every year? For instance, whatever income thou hast earned in a particular year, you should deduct from it your expenses during that year. The Ḥuqúq will then be payable on the remainder. Possessions on which Ḥuqúq was paid the previous year will be exempt from further payment.

[45]

As to the Ḥuqúq, it is payable on whatever is left over after deducting one's yearly expenses. However, any money or possession which is necessary in producing income for one's subsistence, and on which Ḥuqúq hath once been paid, is exempt from Ḥuqúq. This exemption also applieth to a property on which Ḥuqúq hath already been paid, and the income of which doth not exceed one's needs.... Disposition of the Ḥuqúq, wholly or partly, is permissible, but this should be done by permission of the authority in the Cause to whom all must turn.

[46]

Ḥuqúq is applied on everything one possesseth. However, if a person hath paid the Ḥuqúq on a certain property, and the income from that property is equal to his needs, no Ḥuqúq is payable by that person.

Ḥuqúq is not payable on agricultural tools and equipment, and on animals used in ploughing the land, to the extent that these are necessary.

[47]

As to the way the Ḥuqúq must be paid: Having deducted the expenses incurred during the year, any excess of income derived from one's property, profession or business is subject

to the payment of Ḥuqúq.

[48]

Extracts from the Utterances of ‘Abdu’l-Bahá

Question: As to the matter of Ḥuqúq, does it mean 1/19th of one’s net income or one’s gross income? For example, in , there is a tax on the gross income, after certain exemptions are made. How is the Ḥuqúq to be worked out?

Answer: The substance of ‘Abdu’l-Bahá’s explanation was: After one has paid all his necessary expenses 19% of what is left is then taken by him and given as Ḥuqúq. For example, if a person has 100 piastres left after all his expenses have been paid, then 19 piastres are taken as Ḥuqúq for the Cause of God. This is done at the end of the year after he has ascertained what his expenses are. For every hundred piastres, 19 are taken for Ḥuqúq.

He pays this once, then there is no more Ḥuqúq to be paid on that sum. It is finished. Next year he will pay on the amount he has left over in his possession after his expenses have been deducted, and after the amount he paid Ḥuqúq on the previous year is also deducted.

For example, at the end of the first year a man has 1000 piastres left after all his expenses are paid, then 190 piastres are taken as Ḥuqúq; at the end of the next year after all expenses are determined, he may have 2000 piastres left. As he has already paid Ḥuqúq on 1000 piastres the previous year this sum is deducted from the 2000 and he pays Ḥuqúq on 1000 piastres (or 190 piastres). The third year the net amount of what he owns may be 2500 piastres, he deducts 2000 piastres from this amount and pays 19% on 500 piastres or 95 piastres. If at the end of the 4th year he has 2500 piastres, no Ḥuqúq is taken.

Question: In the deduction of our necessary expenses, are contributions to the Mashriqu’l-Adhkár, teaching and other activities of the Cause considered a part of Ḥuqúq or should they be taken separately?

Answer: ‘Abdu’l-Bahá replied that Ḥuqúq was separate and independent of these and came first. After that had been determined then the other affairs could be looked after. He smiled and said when Ḥuqúq is given ‘Abdu’l-Bahá will ascertain how much of it is for the Mashriqu’l-Adhkár, how much for teaching and how much for the needy, etc.

(Interview with ‘Abdu’l-Bahá, 26 November 1919, note in the handwriting of Shoghi Effendi circa 1920. Questions posed in a letter from George O. Latimer, undated) [49]

Extracts from Letters Written by and on Behalf of Shoghi Effendi

Regarding the Ḥuqúqu’lláh ... this is applied to one’s merchandise, property and income. After deducting the necessary expenses, whatever is left as profit, and is an addition to one’s capital, such a sum is subject to Ḥuqúq. When one has paid Ḥuqúq once on a particular sum, that sum is no longer subject to Ḥuqúq, unless it should pass from one person to another. One’s residence and the household furnishings are exempt from Ḥuqúq. Ḥuqúqu’lláh is paid to the Centre of the Cause.

(April/May 1927, written on behalf of Shoghi Effendi to an individual believer, translated from the Persian) [50]

You will find references to the Ḥuqúq in the book of Aqdas.... All matters not specifically provided by Bahá’u’lláh are to be referred to the Universal House of Justice.

(Postscript in the handwriting of Shoghi Effendi, appended to a letter dated 16 December 1927 written on his behalf to an individual believer) [51]

One mithqál consists of nineteen nakhuds. The weight of twenty-four nakhuds equals four and three-fifths grammes. Calculations may be made on this basis.

(17 November 1937, written on behalf of Shoghi Effendi to an individual believer, translated from the Persian) [52]

Concerning your question whether the heirs to whom the principal residence, furniture and clothing of the deceased are transferred by way of inheritance will be exempt from the payment of Ḥuqúq or not, he said: Since the residence, furniture and the tools of trade have, in accordance with the explicit Text, been granted exemption from the Ḥuqúq, therefore when the transfer of ownership takes place such possessions continue to be exempt.

(29 September 1942, written on behalf of Shoghi Effendi to the National Spiritual Assembly of Iran, translated from the Persian) [53]

Extracts from Letters Written by and on Behalf of the Universal House of Justice

Some of the dear friends who observe their Ḥuqúqu'lláh obligations have written asking about the relationship that exists between contribution to the Funds and the payment of Ḥuqúqu'lláh. That is, if a person who intends to meet his Ḥuqúqu'lláh obligations offers contributions to other Funds and projects instead, would he be exempted from the payment of Ḥuqúqu'lláh or not?

The Holy Texts relevant to this matter are clear but, since this question has been repeatedly asked by the friends, it was decided to elucidate it for their information.

Payment of Ḥuqúqu'lláh is a spiritual obligation binding on the people of Bahá. The injunction is laid down in the Most Holy Book, and clear and conclusive explanations are embodied in various Tablets.

Every devoted believer who is able to meet the specified conditions, must pay the Ḥuqúqu'lláh, without any exception. Indeed according to the explicit Text of the Most Holy Book, failure to comply with this injunction is regarded as a betrayal of trust, and the divine call: "Whoso dealeth dishonestly with God will in justice be exposed", is a clear reference to such people.

The Centre of the Covenant has affirmed the obligation of Ḥuqúq in these words: "The Lord as a sign of His infinite bounties hath graciously favoured His servants by providing for a fixed money offering, to be dutifully presented unto Him, though He, the True One and His servants have been at all times independent of all created things."

This weighty ordinance, as testified by the Pen of Glory is invested with incalculable benefit and wisdom. It purifies one's possessions, averts loss and disaster, conduces to prosperity and honour and imparts divine increase and blessing. It is a sacrifice offered for and related to God, and an act of servitude leading to the promotion of His Cause. As affirmed by the Centre of the Covenant, Ḥuqúq offerings constitute a test for the believers and enable the friends to become firm and steadfast in faith and certitude.

In brief, payment of Ḥuqúqu'lláh is one of the binding spiritual responsibilities of the followers of Bahá'u'lláh and the proceeds thereof revert to the Authority in the Cause to whom all must turn. Moreover, the Ancient Beauty—magnified be His praise—has affirmed that after the establishment of the Universal House of Justice necessary rulings would be enacted in this connection in conformity with that which God has purposed, and that no one, except the Authority to which all must turn, has the right to dispose of this Fund. In other words, whatever portion of one's wealth is due to the Ḥuqúqu'lláh belongs to the World Centre of the Cause of God, not to the individuals concerned.

Thus the friends should not follow their own volition and judgement in using any of the funds set aside for Ḥuqúqu'lláh for any other purpose, even for charitable contributions of the Faith.

We earnestly hope that everyone may be privileged to observe this sacred and blessed obligation which would ensure the attainment of true happiness and would serve to promote the execution of Bahá'í enterprises throughout the world.

(25 October 1970, written by the Universal House of Justice to the National Spiritual Assembly of Iran, translated from the Persian) [54]

We are deeply touched by your loving letter of 27 December 1972 expressing the wish to follow the Law of Ḥuqúqu'lláh with respect to your inheritance from your mother....

This Law of the Aqdas stipulates that nineteen percent of one's capital is payable as Ḥuqúqu'lláh when such capital has reached an amount of at least "nineteen mithqáls in gold".... In determining the amount a believer should pay, he should first deduct any debts and expenses he may have, and pay nineteen percent on the remainder of his capital if it is equal to at least nineteen mithqáls of gold.

...to observe this Law of the Aqdas ..., you should determine the total value of your inheritance in cash and other assets less any expenses or debts you may have, and consider the circumstances under which you may be able to pay Ḥuqúqu'lláh on the net value of your inheritance. The time and conditions of payment are left to each individual.

For example, if one's assets include property or shares in addition to cash, he may find it disadvantageous or inconvenient to pay nineteen percent of the value of the non-cash assets until they are disposed of, at which time he would prefer to fulfill this spiritual obligation. Any expenses that may be involved in disposing of one's assets should be deducted before calculating the net value on which Ḥuqúqu'lláh is payable.

(21 January 1973, written by the Universal House of Justice to an individual believer) [55]

The devoted believer who is privileged to pay "the right of God", far from seeking excuses for evading this spiritual obligation, will do his utmost to meet it. On the other hand, inasmuch as obedience to this Law is a matter of conscience, and payment of Ḥuqúqu'lláh is a voluntary act, it would not be seemly to go beyond informing the ... friends of their spiritual obligation, and leaving to them to decide what they wish to do about it.

The same principle applies to those friends who spend lavishly on their families, who purchase or build residences and furnish them far in excess of their needs, and rationalize these expenditures in their desire to avoid payment of Ḥuqúqu'lláh.

(26 February 1973, written by the Universal House of Justice to an individual believer) [56]

...many details in the computation of Ḥuqúqu'lláh have been left by Bahá'u'lláh to the judgement and conscience of the individual believer. For example, He exempts such household equipment and furnishings as are needful, but He leaves it to the individual to decide which items are necessary and which are not. Contributions to the funds of the Faith cannot be considered as part of one's payment of Ḥuqúqu'lláh; moreover, if one owes Ḥuqúqu'lláh and cannot afford both to pay it and to make contributions to the Fund, the payment of Ḥuqúqu'lláh should take priority over making contributions. But as to whether contributions to the Fund may be treated as expenses in calculating the amount of one's assets on which Ḥuqúqu'lláh is payable, this is left to the judgement of each individual in the light of his own circumstances.

(16 September 1979, written on behalf of the Universal House of Justice to an individual believer) [57]

It is clear from the Writings that a person is exempt from paying Ḥuqúqu'lláh on his residence and such household and professional equipment as are needful. It is left to the discretion of the individual to decide which items are necessary and which are not. It is obvious that the friends should not spend lavishly on residences and furnishings and rationalize these expenditures in their desire to avoid payment of Ḥuqúqu'lláh. No specific text has been found exempting capital used to earn income. The Universal House of Justice leaves such matters to the consciences of individual believers.

(9 April 1980, written on behalf of the Universal House of Justice to an individual believer) [58]

Your second question asks whether, where there is perfect understanding between husband and wife and she is empowered to manage her husband's property as well as her own, she could pay the amount of Ḥuqúqu'lláh applicable to all their possessions or, since the husband owns a portion of the property, she should pay only the amount of Ḥuqúqu'lláh on her own share of the property.

In answering this question one should remember that the Ḥuqúqu'lláh is payable on possessions that are indisputably recognised as being one's own and not on property that one merely controls or uses. However, in cases similar to the one you have mentioned above, it is incumbent on husband and wife to take counsel together and to define precisely the limits of their personal belongings, then they should either jointly or individually render to the Ḥuqúq the amount they consider to be their binding obligation.

(10 January 1982, written on behalf of the Universal House of Justice to an individual believer, translated from the Persian) [59]

As to the question raised by Mr. ..., kindly inform him that in a letter to an individual believer the beloved Guardian explained that Ḥuqúqu'lláh is payable only once on a given property, whether personal or real, but should this property pass from one person to another, such as through inheritance, it becomes again subject to the payment of Ḥuqúqu'lláh. This in effect means that heirs receiving a share of their inheritance from an estate must pay Ḥuqúqu'lláh, if the share they are receiving increases their wealth to a level calling for the discharge of this sacred obligation.

(1 June 1983, written on behalf of the Universal House of Justice to a National Spiritual Assembly) [60]

As regards your question concerning the principal residence and subsidiary rulings relevant to it, we wish to let you know that in these days it is not deemed advisable to enact detailed rulings for Ḥuqúqu'lláh. Thus the friends are left free, and whenever no definite rulings exist they may fulfil in each case that which they understand from the texts, and may honour their Ḥuqúqu'lláh obligations according to their own judgement and the promptings of their own conscience.

(4 March 1984, written by the Universal House of Justice to an individual believer, translated from the Persian) [61]

...if a believer has calculated his liability to Ḥuqúqu'lláh and knows that he owes some, he should pay this in preference to making any other contributions.

However, during the course of the year a believer may well be making contributions to various funds, or giving money to charity, just as he is spending his money on a wide range

of activities associated with his daily life. The ... Universal House of Justice leaves it to his judgement to follow either of the following courses:

(a) To treat such contributions as expenses. They would then reduce the balance of savings he would have left at the end of the year on which Ḥuqúqu'lláh is payable.

(b) To consider that he should make such contributions only out of money on which Ḥuqúqu'lláh has been paid.

This ruling also leaves it open to the individual to treat some contributions in one way and some in the other. The House of Justice leaves all such details to the judgement and conscience of the individual believer.

(3 February 1987, written on behalf of the Universal House of Justice to an individual believer) [62]

If, as you say, you are not in a position ever to accumulate assessable property equivalent in value to 19 mithqáls in gold, then, as the texts explain, you have no obligation to pay Ḥuqúqu'lláh. However, this does not mean that you may not contribute to this Fund if you wish to do so out of your love for Bahá'u'lláh and the generosity of your heart.

(23 June 1987, written on behalf of the Universal House of Justice to an individual believer) [63]

One believer cannot discharge the obligation of another to pay Ḥuqúqu'lláh.

It is not permissible for a believer to earmark for any purpose a payment he makes to Ḥuqúqu'lláh, nor may he make such payment in honour of anyone.

(22 March 1989, memorandum from the Universal House of Justice to a department at the Bahá'í World Centre) [64]

Essentially, the Ḥuqúqu'lláh should be paid by a believer during the course of his life whenever his surplus property reaches the assessable level. A certain leeway is provided in the law, inasmuch as reference is made to the annual expenses which should be deducted before the liability to Ḥuqúqu'lláh is calculated. Ideally, when a Bahá'í dies, the only payment to Ḥuqúqu'lláh which should need to be provided for in his Will is such additional liability as may be found to exist when his affairs are reckoned up as at the date of his death.

The House of Justice hopes that as the believers acquaint themselves with the law of Ḥuqúqu'lláh and start to pay it, they will also learn not only how to calculate it during the course of their lives but will thereby be enabled to understand how to provide for the payment of the balance remaining at their deaths.

(1 October 1989, written on behalf of the Universal House of Justice to a Board of Trustees of Ḥuqúqu'lláh) [65]

The House of Justice does not envisage issuing any specific method of calculation for the use of the friends. They should be left free to work out their own methods on the basis of the texts and examples already before them.

(1 July 1991, written on behalf of the Universal House of Justice to the Office of the Treasurer of a National Spiritual Assembly) [66]

The Universal House of Justice has received your letter of 28 December 1991 in which you pose a question related to calculating the property on which you are due to pay Ḥuqúqu'lláh. The information provided by you is summarized as follows.

You have in your possession a collection of items in the nature of heirlooms, some of which are probably quite valuable, and which you call “The Family Museum”. This collection yields no income, and never has, apart from a few occasions on which you have put it on display to raise money for charity. You wish to know whether you should now have this collection valued so that you can include it in your property for the purposes of computing your Ḥuqúqu’lláh.

The House of Justice has asked us to say that it is not necessary to bring such a possession into account immediately. If it is sold, in whole or in part, then the proceeds become assessable to Ḥuqúqu’lláh.

(9 February 1992, written on behalf of the Universal House of Justice to an individual believer) [67]

The payment of Ḥuqúqu’lláh is a personal obligation on each Bahá’í, and it is for him to meet this obligation in accordance with his own conscience; it cannot be demanded from him by any of the institutions of the Faith. A part of this obligation is for a Bahá’í to make provision in his will for the payment of whatever remains of his debt to Ḥuqúqu’lláh at the end of his life. The Bahá’í law of intestacy, likewise, provides for the payment of such a balance of Ḥuqúqu’lláh before the distribution of the estate to the heirs.

The Law of Inheritance as revealed in the Kitáb-i-Aqdas, which is applicable when the deceased has left no will, is explicit in stating:

Division of the estate should take place only after the Ḥuqúqu’lláh hath been paid....

Likewise, in relation to the making of a Will, Bahá’u’lláh has stated:

A person hath full jurisdiction over his property. If he is able to discharge the Ḥuqúqu’lláh, and is free of debt, then all that is recorded in his will, and any declaration or avowal it containeth, shall be acceptable. God, verily, hath permitted him to deal with that which He hath bestowed upon him in whatever manner he may desire.

This makes it clear that the responsibility of a testator to pay his debts and his Ḥuqúqu’lláh have precedence over his freedom to leave his property in whatever other manner he wishes.

(30 April 1992, memorandum from the Universal House of Justice to a department at the Bahá’í World Centre) [68]

The question is whether the property on which a person is obliged to compute his Ḥuqúqu’lláh is all that he possesses at the date on which the Law becomes applicable to him, or only on such property as he amasses subsequent to that date.

Our conclusion is that the property which is assessable to Ḥuqúqu’lláh is all that a person possesses on the date that the Law becomes applicable to him. This does not mean, of course, that he must immediately pay the Ḥuqúqu’lláh that is due, since to do so might require him to dispose of many of his belongings and place him in a very difficult situation. But the principle of computation is clear, and the Ḥuqúqu’lláh due should ultimately be paid.

(4 May 1992, written on behalf of the Universal House of Justice to the Trustee of Ḥuqúqu’lláh, the Hand of the Cause of God ‘Alí-Muḥammad Varqá) [69]

You ask about the applicability of the law of Ḥuqúqu’lláh to the money that a believer spends on “travelling for the Faith, living a little more generously” and so forth. Our impression from answers given to other questions is that this is a matter for the conscience of the individual. There is, in fact, a vast range of expenditures which could, or could not, be included under the heading of normal annual expenses which are to be set against income

before arriving at the sum assessable to Ḥuqúqu'lláh. In the specific case of contributions to the various funds of the Faith, the Universal House of Justice has already stated that it is for the individual to decide whether he will consider these as part of his normal expenditure or will pay them out of his savings which have been cleared.

(14 February 1993, memorandum from the Universal House of Justice to the Office of Ḥuqúqu'lláh in the Holy Land) [70]

The Office of Ḥuqúqu'lláh in the referred to the Universal House of Justice the questions on the law of Ḥuqúqu'lláh attached to your letter of 21 April 1993, and we have been instructed to send you the following answers.

1 There are, indeed, differences among a person's debts in relation to the calculation and payment of Ḥuqúqu'lláh. With regard to computation, debts are, naturally, to be offset against assets. With regard to priority of payment, one should take into account the terms of a loan. If a schedule of payments has been specified, and one will be able to meet them from anticipated income when they are due, one should, of course, pay one's Ḥuqúqu'lláh in the meantime. If, however, one cannot meet the payment of both, the debt must take precedence.

2 The relative priority of the payment of Ḥuqúqu'lláh and of contributing to the funds of the Faith is made clear in section 105 of the compilation on Ḥuqúqu'lláh. The House of Justice does not wish to go beyond this at the present time.

3 Freedom is left to each husband and wife to decide whether to comply with their obligations to Ḥuqúqu'lláh jointly or separately because the House of Justice does not wish to interfere with the right of each couple to decide how they wish to deal with their own finances. One couple may prefer to own their property jointly; another may prefer to keep their respective properties separate; or there may be various combinations of these arrangements.

(8 July 1993, written on behalf of the Universal House of Justice to an individual believer) [71]

Your letters of 24 and 25 May 1993 and the booklet you sent were received by the Office of Ḥuqúqu'lláh. The two questions you raised were referred to the Universal House of Justice, which has now instructed us to send you the following reply.

1 Funds being saved up for the purchase of a residence are not in themselves exempt from Ḥuqúqu'lláh. Thus, if the person were to die before purchasing a residence, these savings would be assessable to Ḥuqúq. However, ... it is left to the individual, who is saving to buy a residence, to decide whether to pay Ḥuqúqu'lláh on the money as he saves it, and then count the exemption when the residence is actually purchased, or to postpone the inclusion of the savings in his calculation of Ḥuqúqu'lláh until after the residence is purchased, at which time, of course, the value of the residence becomes exempt.

2 ...computations for Ḥuqúqu'lláh in practice should be made on the basis of the accumulation of savings, not just on each year separately. Only in this way can one take account of losses in one year which reduce one's liability in the next, or compute the profit or loss on the sale of an investment which was purchased in an earlier year.

(8 October 1993, written on behalf of the Universal House of Justice to an individual believer) [72]

Your ... question centers on the provision for Ḥuqúqu'lláh in Bahá'í wills. Your understanding that the obligation to pay Ḥuqúqu'lláh arises during one's lifetime and is normally to be carried out with lifetime giving is correct, although at the same time it is true

that there may be cases where a believer dies without having made provision in his or her will for payment of the unpaid portion of Ḥuqúqu'lláh, if any. The event of death does not remove from a believer the obligation to pay Ḥuqúqu'lláh. Whatever portion is due to be paid is therefore a debt due from the believer's estate at the time of his or her death. The cost of the funeral and burial, the payment of the debts of the deceased, and the payment of whatever portion of Ḥuqúqu'lláh remains due are prior charges on the estate which must be met before arriving at the amount of the property which has to be divided in accordance with the provisions of the law of inheritance. Thus, whether or not a person makes a will or, having made a will, whether he or she makes provision in it for the payment of Ḥuqúqu'lláh, the Ḥuqúqu'lláh should be paid, like all debts, before the rest of the estate is divided.

In light of this, it is certainly advisable for a believer to make the necessary arrangements for payment of Ḥuqúqu'lláh prior to his or her death, in order to avoid complications or confusions which could arise. It should be noted that the question of a legal wording to include provision in a will for the payment of Ḥuqúqu'lláh after a believer has died is dependent upon so many factors, that it would be preferable to seek legal advice so that wording which is appropriate and in accordance with the laws governing inheritance can be used. Obviously, unless the believer leaves a clear accounting of his or her property and payment of Ḥuqúqu'lláh to date, if any, it will not be possible for anyone to calculate accurately what remains to be paid at the time of death. While the application of the principles involved in payment of Ḥuqúqu'lláh may well require subsidiary legislation by the House of Justice in the future, at the present time it falls to the executor or administrator of an estate to apply them to the extent possible, using his or her best judgment and taking into account the information available. Finally, while the payment of Ḥuqúqu'lláh is each individual's own responsibility, a believer may be referred to the nearest Representative of the Trustee of Ḥuqúqu'lláh, who could advise him or her in the light of any specific circumstances.

(1 July 1996, written on behalf of the Universal House of Justice to an individual believer)
[73]

In Bahá'í law each individual believer, whether man or woman, is responsible for paying Ḥuqúqu'lláh on the property he or she owns or acquires; this presumes the right of individual ownership of property. In the case of a married couple, however, the Universal House of Justice has indicated that they may choose to pay their Ḥuqúqu'lláh jointly, if they so wish, and there is no prohibition against joint ownership, whether by a couple or by two or more business partners. Each individual is under the obligation of making a will. In the Questions and Answers no. 78 we read that, in the case of intestacy, apart from used clothing, whatever there may be among the husband's possessions, whether jewellery or otherwise, belongs to the husband, "except what is proven to have been gifts to the wife". Similarly, in a letter written on behalf of the Guardian in Persian we find the following: "You have asked concerning the division of furniture and property, after the completion of the year of waiting.... The Guardian stated that whatever belonged to the wife and constituted her personal property remains hers and that no one has any right to interfere."

It is clear, therefore, that the property of a husband and wife are regarded as separate except insofar as one makes gifts to the other or they agree to own all or part of the property jointly. In other words, it is for the husband and wife themselves to decide how their property is held. An inheritance or gift received by one spouse would remain the property of that individual unless he or she decides otherwise.

It is also possible for a husband and wife to enter into an agreement at the time of marriage, or later, concerning the apportionment of their property.

The status of the ownership of the property then affects what becomes of it in the case of divorce or the death of one of the parties.

This is a very brief summary of the situation. Undoubtedly in the years to come the Universal House of Justice will be called upon to decide on specific issues of detail as they arise. It must also be remembered that at the present time the implementation of Bahá'í law in such matters is dependent upon the provisions of the civil law, which takes precedence.

(15 October 1998, written on behalf of the Universal House of Justice to an individual believer) [74]

As to whether Ḥuqúqu'lláh is acceptable from Bahá'ís who have been deprived of their voting rights, the House of Justice has stated:

After considering precedents set by the beloved Guardian, we have come to the conclusion that Ḥuqúqu'lláh is not acceptable from such believers.... Any believer who is under the sanction of deprivation of administrative rights and who offers to pay Ḥuqúqu'lláh should simply be told that such a payment is not acceptable. If he remits a payment, it should be returned to him.

(12 September 2000, written on behalf of the Universal House of Justice to an individual believer) [75]

The Universal House of Justice has received your email letter dated 31 January 2002, inquiring if a company, owned only by a Bahá'í, may make contributions to the Fund and pay Ḥuqúqu'lláh.

The obligation to pay Ḥuqúqu'lláh rests on individual believers, not on corporate bodies, even if they are wholly owned by Bahá'ís. On the other hand, if the owners of a company, which is entirely Bahá'í-owned, wish their company to make a donation to Ḥuqúqu'lláh, such a contribution is acceptable. It does not, of course reduce the obligation of the individual believers concerned to pay their own Ḥuqúqu'lláh.

With regard to the Bahá'í Fund, it is entirely permissible for contributions to be made to the Fund from a business which is owned solely by Bahá'ís.

(12 February 2002, written on behalf of the Universal House of Justice to a National Spiritual Assembly) [76]

Your memorandum refers to us the question of a believer who sells his or her principal residence to move into a nursing home or a similar care facility. The inquiry is whether the difference between the sale price of the residence and the sum required to pay the nursing home fees should be subject to the Right of God.

We have decided that it should be left to the discretion of the individual concerned to determine the course of action to be followed, having regard for his own assessment of his personal circumstances and intentions, as well as his own understanding of the text.

(12 July 2004, memorandum from the Universal House of Justice to the Office of Ḥuqúqu'lláh in the Holy Land) [77]

...if one's assets include property or shares in addition to cash, the individual might sustain financial loss or may face other difficulties in paying nineteen percent of the value of the non-cash assets before they are disposed of, and he may therefore prefer to pay the Ḥuqúqu'lláh once they are dispensed with. Any expenses that may be involved in disposing of one's assets should be deducted before calculating the net value on which Ḥuqúqu'lláh is payable.

We also remind you that Ḥuqúqu'lláh is payable on all that a person possesses on the date that the Law becomes applicable to him. This does not mean, of course, that the Ḥuqúqu'lláh payment that is due must be made immediately, since to do so might require an individual to dispose of many of his belongings and could place him in a difficult situation. The principle of the computation, however, is clear, and the Ḥuqúqu'lláh due should ultimately be paid.

(10 May 2006, written on behalf of the Universal House of Justice to an individual believer, translated from the Persian) [78]

The basic principle is that when a believer passes away, his principal residence, as well as items such as necessary furnishings and tools of trade, remains exempt when computing how much, if any, Ḥuqúqu'lláh remains to be paid on his estate.

Subject to the terms of the will, a beneficiary may well receive some or all of these items. Whether or not he is required to pay Ḥuqúqu'lláh on these newly acquired assets will depend on the purpose for which he uses them. If they are used for purposes subject to exemption, such as his principal residence, necessary furnishings, or tools of trade, he would be exempt from paying Ḥuqúqu'lláh on them. However, if he uses them for other purposes, such as converting them to cash, the exemption would not apply.

(21 May 2006, written on behalf of the Universal House of Justice to an individual believer) [79]

When funds are offered by a believer in honour of another Bahá'í, the donor should be informed that it cannot be accepted as a Ḥuqúqu'lláh payment on behalf of the other believer. The donor can then be given the option of his providing these funds as a Ḥuqúqu'lláh payment on his own behalf or as a contribution to the Bahá'í International Fund in honour of the other individual or of having the funds returned to him.

(12 June 2006, memorandum from the Universal House of Justice to the Office of Ḥuqúqu'lláh in the Holy Land) [80]

3 Functions of the Trustees of Ḥuqúqu'lláh and the Spiritual Assemblies

Extracts from the Writings of Bahá'u'lláh

He is the True, the Faithful!

O Abu'l-Ḥasan! God willing thou art sustained by His lordly favours and art occupied with such deeds as befit His Day. Regard faith as a tree: its fruits and leaves, its branches and boughs are, and ever have been, truthfulness, trustworthiness, rectitude of conduct, and forbearance. Be assured of God's sustaining grace, and engage thyself with service to His Faith. We have designated thee a trustee of God, have bidden thee to observe that which shall exalt the Cause of Him Who is the Lord of the worlds, and have bestowed upon thee the right to receive Ḥuqúqu'lláh. Consort with the people in a spirit of amity and concord, and be unto them a loyal counsellor and a loving companion. Content thyself then with that which We have ordained for thee.

[81]

As to the question of Ḥuqúq: Reference to this matter is in no wise permissible. ...it is entirely dependent upon the willingness of the individuals themselves. They are well acquainted with the commandment of God and are familiar with that which was revealed in the Book. Let him who wisheth observe it, and let him who wisheth ignore it. Verily, thy Lord is the Self-Sufficing, the All-Praised. Indeed, independence of all things is as a door of guidance

unto His faithful servants. Well is it with them that have severed themselves from the world and have arisen to serve His Cause. Verily, they are numbered with the people of Bahá at the court of His resplendent Beauty.

[82]

O Abu'l-Hasan!

May my Glory rest upon thee! Fix thy gaze upon the glory of the Cause. Speak forth that which will attract the hearts and the minds. To demand the Ḥuqúq is in no wise permissible. This command was revealed in the Book of God for various necessary matters ordained by God to be dependent upon material means. Therefore, if someone, with utmost pleasure and gladness, nay with insistence, wisheth to partake of this blessing, thou mayest accept. Otherwise acceptance is not permissible.

[83]

Whenever they make reference to the Ḥuqúq, let them confine themselves to a mere word uttered for the sake of God and this will suffice; coercion is unnecessary, inasmuch as God hath never wished that those engaged in His service should experience any hardship. Verily He is the Forgiving, the Merciful, the Gracious, the All-Bountiful.

[84]

If a person is willing to offer the Right of God, such offering should be received by the Trustees, to whom reference hath been made in the Book of God. This ordinance hath, in view of certain considerations, been revealed from the heaven of divine Revelation as a token of His grace. The advantages arising therefrom shall fall to the individuals themselves. Verily He speaketh the truth and there is none other God but Him, the Mighty, the Powerful.

Any amount received by them will be transmitted. Great is the blessedness of them that observe His bidding.

[85]

Whoso desireth to offer Ḥuqúqu'lláh with the utmost joy and eagerness should pay it to trustworthy persons like unto thyself and obtain a receipt, so that whatsoever is effected may conform to His sanction and permission. Verily He is the Knowing, the Wise.

[86]

Thou hast written that those individuals had been told that payments for the Ḥuqúqu'lláh cannot be handed over to every person. This assertion is indeed true. The Ḥuqúqu'lláh should be kept in the custody of trusted individuals and forwarded to His holy court through the Trustees of God.

[87]

To discharge one's obligations is highly praiseworthy in the sight of God. However, it is not permitted to solicit Ḥuqúq from anyone. Beseech ye the one true God to enable His loved ones to offer that which is the Right of God, inasmuch as the observance of this injunction would cause one's possessions to be purified and protected and would become the means of attracting goodly gifts and heavenly blessings.

[88]

Someone must needs remind the servants of God, that perchance they may be privileged to meet their obligation of Ḥuqúq, thus attaining a sublime station and gaining a reward that

would last for ever. The payments for the Ḥuqúq should be kept in the custody of a trusted person and a report submitted so that steps may be taken according to the good pleasure of God.

[89]

O Amín! Upon thee be My glory. It behoveth thee to have the utmost regard for the dignity of the Cause of God in all circumstances.... We exhort thee to keep thine eyes directed to the horizon of dignity and, while being mindful of His sublime words: "...yet warn them, for in truth warning will profit the believers", to give the friends of God a gentle reminder in a spirit of amity and concord. Indeed, whoever is graciously enabled to fulfil this obligation, he will be reckoned among the sincere lovers of God in the lucid Book; but if not, no one should contend with him.

In this Day the glances of God—exalted be His glory—are directed towards the hearts of men and to the goodly pearls treasured therein. This beseemeth the Lord and His chosen ones—glorified be His majesty. It behoveth thee to pray on behalf of the friends and loved ones of God, that He may graciously enable them to fulfil that which is ordained in the Book, and that they may not be hindered by vain imaginings and the transitory things of the world.

[90]

Extract from the Writings of ‘Abdu’l-Bahá

A third requisite is the promulgation of the divine commandments among the friends, such as the Obligatory Prayers, Fasting, Pilgrimage, Ḥuqúqu’lláh and all the other ordinances.

[91]

Extract from a Letter Written on Behalf of Shoghi Effendi

The paying of the Ḥuqúq is a spiritual obligation; the friends must not be obliged by the Assemblies to pay it, but they should be encouraged to fulfil this spiritual obligation laid upon them in the Aqdas.

(12 October 1946, to a National Spiritual Assembly) [92]

Extracts from Letters Written by and on Behalf of the Universal House of Justice

Since the Ḥuqúqu’lláh has, according to the injunction in the Book, been designated as one of the institutions of the Cause, and inasmuch as the fulfilment of this obligation is binding on the people of Bahá, therefore it is deemed appropriate that your Spiritual Assembly should fully familiarize the dear friends in Persia with the significance of this momentous responsibility and to promulgate gradually in the entire community such ordinances related to Ḥuqúqu’lláh as are laid down in His perspicuous Book. Obviously in pursuance of the explicit Texts solicitation of the Ḥuqúqu’lláh is not permissible, but it is the responsibility of those Trustees of the Cause to address appeals of a general character to the dear friends, so that they may become more informed about this essential obligation. God willing, through the occasional reminders issued by your Assembly, they may gain the privilege and honour of achieving this benevolent deed—a deed that draws forth heavenly blessings, serves as a means of purifying the earthly possessions of the devoted friends, and promotes the international activities of the people of Bahá.

(27 October 1963, written by the Universal House of Justice to the National Spiritual Assembly of Iran, translated from the Persian) [93]

Undoubtedly the friends are illumined with the light of the fear of God and are fully conscious of the need to purify and protect their possessions in accordance with the decisive Words revealed by our Lord, the Most High.

In these turbulent days, we that yearn for Him, fervently turn in prayer to the court of the Lord of mankind that He may graciously enable that august Assembly to repeatedly remind the lovers of the Beauty of the All-Merciful of the vital importance and the binding character of this sacred and heavenly injunction. Through issuing announcements, distributing leaflets and in gatherings, schools and conferences held by the followers of our Zealous Lord, they should be guided and encouraged to observe strictly and conscientiously that which His divine commandment has enjoined upon them, so that those believers who are adorned with the fear of God may be shielded from the dire consequences foreshadowed in His ominous warnings, may become the recipients of His assured blessings and be enabled to partake of the outpourings of His infallible spiritual grace.

(12 September 1969, written by the Universal House of Justice to the National Spiritual Assembly of Iran, translated from the Persian) [94]

The continuing responsibility for educating the believers in the law of Ḥuqúqu'lláh is shared by all the institutions of the Faith. But your deputies and their representatives, through the close relationships which they are forming with individual believers, will be able to advance their understanding of the spiritual and practical aspects of this law in an especially effective way. The primary need at this time, we believe, is ... for the friends to be encouraged to understand and accept the responsibility which rests on every true-hearted follower of the Faith to apply the principles of the law to the specific details of his or her own condition. The members of your institution, through wise and tactful comments and explanations, can assist them to do this, while refraining from exerting, or appearing to exert, any form of pressure.

A major challenge now before those devoted friends who have been called to serve as your deputies and representatives is the organization of their own work to ensure a reliable system for the acceptance, receipting, custody and remittance of the funds of Ḥuqúqu'lláh. It is love for Bahá'u'lláh which will be the primary motive for the friends in obeying this law, but they will carry out their duty with greater assurance and promptitude the greater their confidence in and respect for those on whom has been conferred the responsibility of receiving this Right of God on your behalf.

(13 November 1992, written by the Universal House of Justice to the Trustee of Ḥuqúqu'lláh, the Hand of the Cause of God 'Alí-Muḥammad Varqá) [95]

The functions you have been summoned to perform are vital. You are charged with the responsibility to educate the believers in the law presented to them in the Kitáb-i-Aqdas to render payment unto God of a specific portion of their material assets. Your task is essentially spiritual, that of drawing the attention of the friends to their obligations as followers of Bahá'u'lláh and thus of playing a significant role in fostering the development of the relationships of love and obedience which must bind the believer to his Creator. In a world preoccupied with self-indulgence, you are called upon to revive the hallowed concept of religious duty and obligation.

The work in which you are engaged is most challenging. It concerns promulgation of a law which is fundamental to the individual's spiritual life, and the attitude with which it is carried out is an essential feature of its observance. The befitting discharge of your functions requires the utmost sensitivity and discretion, to avoid undue pressure on believers to adhere to a law which is a matter of conscience, and to find the proper mode of communication which provides timely reminders while refraining from unproductive

repetition.

Central to the success of your endeavours is the extent to which you are able to create and sustain a relationship of love and trust with the believers you are called upon to assist, so that they will, through their association and interaction with you, be motivated to adhere wholeheartedly to the law of Ḥuqúqu'lláh and to partake of its inestimable spiritual benefits.

These are still early days in the worldwide development of the institution of Ḥuqúqu'lláh, which will expand and flourish in the centuries to come, and will provide material resources essential for the advancement of the human race. How important, then, that such an institution be distinguished by the impeccable probity with which it is administered, and by the evident trustworthiness of those who serve it. Assuredly your efforts will continue to be exerted in a manner that will enhance the high reputation which the institution of Ḥuqúqu'lláh has acquired in the eyes of the believers.

(14 February 1997, written by the Universal House of Justice to the Deputies and Representatives of the institution of Ḥuqúqu'lláh) [96]

One of the tasks of the Representatives is to assist in educating the believers in the law of Ḥuqúqu'lláh and its importance. Naturally, this process of education cannot be limited to those whose possessions reach the amount to bring them within the obligation of the law, since this fact is often known only to the individual concerned. Children, also, should learn the law of the Right of God as part of their Bahá'í education. Sometimes friends become so enthused with the concept of this law that they express the wish to make contributions to the Ḥuqúqu'lláh Fund, even though they are not obliged to do so. The House of Justice has stated that it is permissible for the Representatives to accept such contributions.

In other words, if someone, out of their love for the Cause, makes a payment to Ḥuqúqu'lláh, it is not for the Representative to question whether or not that person is under obligation to pay it; he should graciously accept it.

This, as you can see, is quite different from actually encouraging Bahá'ís to pay more Ḥuqúqu'lláh than the law of God requires them to do, and such encouragement would be a departure from the spirit of the law as Bahá'u'lláh has revealed it.

(13 September 1998, written on behalf of the Universal House of Justice to an individual believer) [97]

It is clear that, over the past decade, more and more believers have become informed of the significance of the law of Ḥuqúqu'lláh, and are following its provisions. You may well contemplate with satisfaction the results of your labours, as you formulate your plans for the extension of the influence of this mighty law to all segments of the worldwide Bahá'í community. Your integrity, the scrupulous care with which you have handled the funds entrusted to you, and your efficiency in providing receipts and maintaining accurate records have all contributed to the confidence of the believers in this institution and to the high prestige with which it is held in the Bahá'í community.

In carrying out your functions, you are assisting in the advancement of a process which will, in the centuries ahead, give rise to a transformation of society far beyond our present capacity to comprehend.

(12 January 2003, written by the Universal House of Justice to the Deputies and Representatives of the institution of Ḥuqúqu'lláh) [98]

Furthermore, efforts at fostering the development of institutions operating at the World Centre were especially evident in the continuing evolution of the institution of Ḥuqúqu'lláh

under the distinguished leadership of the Trustee, the Hand of the Cause of God 'Alí-Muḥammad Varqá. Through his wise initiative and constant endeavour, Dr. Varqá has inspired the education of the friends everywhere concerning the law of Ḥuqúqu'lláh. In the decade since the law was universally applied, a network of national and regional boards of trustees has been brought into existence, which provides coordination and direction to the service of an increasing number of deputies and representatives. Knowledge of this great law has spread widely, and friends from all continents are responding to it with a spirit of devotion, which the Trustee hopes will touch those who have not yet availed themselves of the promised blessings flowing from adherence to this law.

(Riḍván 2003, written by the Universal House of Justice to the Bahá'ís of the world) [99]

With the approach of the meeting ..., which will mark your inaugural meeting as members of the International Board of Trustees of Ḥuqúqu'lláh, we have decided that it is now appropriate to provide you with guidance about your work and the development of Ḥuqúqu'lláh, the Right of God, in the years ahead.

As stated in our letter ..., notifying you of your appointment, your duties are those of the trusteeship of Ḥuqúqu'lláh, following in the path of the Chief Trustee of Ḥuqúqu'lláh, the Hand of the Cause Dr. 'Alí-Muḥammad Varqá....

A major element of the duties to be undertaken by the Deputies and Representatives throughout the world will continue to be the education of believers in the Right of God. The required education should be accomplished in a moderate and patient manner, so that the hearts of the believers are attracted to obedience to the provisions of the law of Ḥuqúqu'lláh as part of their yearning to pursue the path of spiritual development prescribed by Bahá'u'lláh. The most important features of the law should be presented in as simple a form as possible, to avoid the dear friends obligated to pay Ḥuqúqu'lláh from becoming inhibited about doing so by an unwarranted fear of its complexity of application.

Under all conditions, due attention should be given to preserving the dignity of the Faith....

We ask you to propose ... details for a network of National or Regional Boards embracing the entire worldwide community and to recommend the membership of these Boards. In countries where there are a substantial number of believers obligated to pay Ḥuqúqu'lláh, a National Board is appropriate. Regional Boards should be set up to cover other groups of countries, with the expectation that each Regional Board will be replaced by a number of National Boards in the future, as the Bahá'í community grows.

The members of these Boards will be appointed to serve for a term of three years and will be eligible for reappointment. No specific date is set for the appointment, so that a replacement can be approved whenever a Deputy is unable to discharge the functions. We have decided that Counsellors should not be eligible for membership to these Boards.

The Regional and National Boards would have the function of appointing Representatives, for a term of three years; as in the case of Deputies, when a Representative is appointed to replace an existing member unable to carry out the functions, the new appointee will serve for a full three years.

To the extent possible the Representatives will not be required to receive and transmit funds or to issue receipts.... This modification in the functions of the Representatives means that their work will be educational....

(25 January 2005, written by the Universal House of Justice to the members of the International Board of Trustees of Ḥuqúqu'lláh) [100]

New developments have, likewise, taken place at the World Centre. We have decided that the time is propitious to bring into being an International Board of Trustees of Ḥuqúqu'lláh to guide and supervise the work of Regional and National Boards of Trustees of Ḥuqúqu'lláh throughout the world. It will operate in close collaboration with the Chief Trustee, the Hand of the Cause of God Dr. 'Alí-Muammad Varqá, and will be able to benefit from his knowledge and counsel in carrying out its duties. The three members now appointed to the International Board of Trustees are Sally Foo, Ramin Khadem, and Grant Kvalheim. Their term of office will be determined at a later date. The members of the Board will not transfer their residence to the but will utilize the services of the Office of Ḥuqúqu'lláh at the World Centre in performing their functions.

(Riḍván 2005, written by the Universal House of Justice to the Bahá'ís of the world) [101]

The Universal House of Justice has received your email letter dated 4 December 2005 concerning the permissibility of individuals paying Ḥuqúqu'lláh via their National Spiritual Assembly and has forwarded it to our Department for reply.

...the believers may prefer to make their payments through the treasurers of their National Assemblies, and the House of Justice has maintained the right of the friends to pay their Ḥuqúqu'lláh in this way if they so choose.

(19 January 2006, written on behalf of the Universal House of Justice to a National Spiritual Assembly) [102]

The Institution of Ḥuqúqu'lláh has steadily progressed under the stewardship of the Hand of the Cause of God Dr. 'Alí-Muammad Varqá, appointed Trustee by Shoghi Effendi fifty years ago, culminating in the establishment in 2005 of an international board designed to promote the continued widespread application of this mighty law, a source of inestimable blessings for all humanity.

(Riḍván 2006, written by the Universal House of Justice to the Bahá'ís of the world) [103]

4 Disbursement of Ḥuqúqu'lláh Funds

Extracts from the Writings of Bahá'u'lláh

It is the binding command of God that in every locality whatever hath been or will be made available for the Ḥuqúqu'lláh should be submitted to His Holy Presence. Any instructions issued in this respect should be observed accordingly, so that all matters may be well-ordered.

[104]

And now concerning the poor, thou hast written to ask whether it is permissible to pay them out of the Right of God. This is conditional upon permission having been granted. In each locality where the Right of God is being received, details of it must be submitted to His exalted presence together with a statement describing the position of the needy ones. Verily He doeth what He willeth and ordaineth what He pleaseth. If permission were to be given universally it would lead to strife and give rise to trouble.

[105]

Extract from the Writings of 'Abdu'l-Bahá

According to the explicit text of the Most Holy Book the amounts offered for the Ḥuqúq should be deposited in a place and be disbursed, as necessary. However thou shouldst not require anyone there to offer the Ḥuqúq unless someone is prepared to do so willingly and

of his own free choice.

[106]

Extract from a Letter Written by Shoghi Effendi

In accordance with the explicit text of the Will and Testament, Ḥuqúqu'lláh should be expended on teaching the Cause of God in countries throughout the East and the West, establishing institutions, building Bahá'í Temples and promoting benevolent undertakings and the general weal.

(15 January 1933, to an individual believer, translated from the Persian) [107]

Extracts from Letters Written by and on Behalf of the Universal House of Justice

'Abdu'l-Bahá in one of His Tablets has stated: "Disposition of the Ḥuqúq, wholly or partly, is permissible, but this should be done by permission of the authority in the Cause to whom all must turn." The provision in His Will and Testament that the Ḥuqúqu'lláh "is to be offered through the Guardian of the Cause of God..." is clearly in accord with this principle. In another Tablet 'Abdu'l-Bahá referred to the Universal House of Justice as "the authority in the Cause to whom all must turn" and it is clear that in the absence of the Guardian it is the supreme and central institution of the Cause. Moreover, before 'Abdu'l-Bahá, Bahá'u'lláh had revealed the following: "There is a prescribed ruling for the Ḥuqúqu'lláh. After the House of Justice hath come into being, the law thereof will be made manifest, in conformity with the Will of God." In accordance with these explicit texts it is clearly within the jurisdiction of the Universal House of Justice to decide about the receipt and disbursement of Ḥuqúqu'lláh at the present time.

(2 March 1972, written by the Universal House of Justice to the Hands of the Cause residing in the Holy Land) [108]

Concerning the Ḥuqúqu'lláh, ... the disposition of the Ḥuqúqu'lláh is a prerogative reserved to the Center of the Faith. The Universal House of Justice is invested with a number of "powers and duties" enumerated in its Constitution such as "preservation of the Sacred Texts", "advanc[ing] the interests of the Faith", "propagat[ing] and teach[ing] its Message", and so forth. The funds collected from the payment of Ḥuqúqu'lláh are expended in pursuit of these purposes, as the House of Justice deems appropriate.

(18 July 1994, written on behalf of the Universal House of Justice to an individual believer) [109]

You have asked as to where and how the House of Justice reports on its uses of the funds received through payment of Ḥuqúqu'lláh. The House of Justice does not issue an accounting of the current expenditure of these funds. However, there is no secret as to the uses to which the funds are put. The Sacred Texts affirm that the Ḥuqúqu'lláh is to be paid to the Authority in the Faith to whom all must turn, and indicate that these funds may be "expended for the relief of the poor, the disabled, the needy, and the orphans, and for other vital needs of the Cause of God". Decisions concerning such factors as the timing, the methods of disbursement and the amount rest with the House of Justice.

In these days, as during the ministry of Shoghi Effendi, all funds received by the Head of the Faith are used to promote the interests of the Faith at the World Centre and worldwide. The Institution of Ḥuqúqu'lláh Newsletter, issue no. 6, mentions that the funds are spent for such purposes as, "promotion of the teaching and proclamation of the Faith worldwide; care, maintenance and restoration of Bahá'í Holy Places; building up of the Bahá'í World Administrative Centre; support of the work of the many Bahá'í institutions and agencies;

erection and restoration of Bahá'í Houses of Worship; establishment and support of new institutions; charitable and benevolent undertakings; and support of the worldwide manifold interests of the Faith."

The effective utilization of Ḥuqúqu'lláh and other funds available to the House of Justice is manifest in the great developments taking place at the World Centre and throughout the Bahá'í world community, many of whose national budgets must be subsidized by the House of Justice, owing to the fact that the vast majority of the world's Bahá'ís are poor and cannot adequately support their national funds....

The Ḥuqúqu'lláh, as its name "The Right of God" implies, has a special character which distinguishes it from all other Bahá'í funds. Its nature and purpose, and the blessings with which payment of it has been endowed can be read in the compilation which has been issued on the subject....

In accordance with Bahá'í principle, contributions to the various Bahá'í funds, as well as payments of the Right of God, are offered confidentially and are receipted.... You may rest assured that at the Bahá'í World Centre a method of financial management has been instituted to keep scrupulous accounts and also to prevent any significant incidence of extravagance or, God forbid, malfeasance from occurring undetected and unchecked. It is a method that maintains both the confidentiality of individual contributions and the integrity of the use of all funds entrusted to the House of Justice.

(16 February 1998, written on behalf of the Universal House of Justice to an individual believer) [110]

As to the specific concern that prompted your inquiry, the use of funds from Ḥuqúqu'lláh, the disbursement of which is entirely at the discretion of the Head of the Faith, entails a wide range of applications that will eventually address various needs of society in ways that will also contribute toward the solution of economic problems. However, it is much too early in the worldwide observance of the Law, and is not possible in the current state of the Bahá'í community or of society, for the House of Justice to elaborate on these details. For the time being, the Ḥuqúqu'lláh is used principally for the work of the Bahá'í community, which, of course, includes its initial efforts at social and economic development.

(8 September 1999, written on behalf of the Universal House of Justice to an individual believer) [111]

As you are aware, the obligation of believers to pay Ḥuqúqu'lláh is set out in the Kitáb-i-Aqdas, and it is offered to the Head of the Faith, now the House of Justice. Disbursement of these funds is decided by the House of Justice and is presently directed to the vital task of raising the World Order of Bahá'u'lláh, which is the essential prerequisite for the enduring resolution of the afflictions humanity is now experiencing.

The House of Justice ensures that detailed accounts of Ḥuqúqu'lláh income and expenditures are maintained by the International Board of Trustees of Ḥuqúqu'lláh and its Office of Ḥuqúqu'lláh in the . It monitors the functioning of the Institution of Ḥuqúqu'lláh and is well satisfied that matters are being handled with the highest level of integrity.

Such an assurance from the House of Justice is, of course, sufficient for members of the Bahá'í community. At this time the House of Justice sees no need to present information on Ḥuqúqu'lláh accounts to external audiences; if a situation arises in the future where there is public controversy over this issue, it will take whatever action it deems appropriate at that time.

(25 July 2006, written on behalf of the Universal House of Justice to an individual believer)
[112]

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